

probably be held that the trustee, without the concurrence of the executor, can give a good title (*b*).

Lord St. Leonards' Act. — By Lord St. Leonards' Act (22 & 23 Vict. c. 35, s. 14) where by a will coming into operation after 13th August, 1859, a testator *charges [*464] real estate with the payment of *debts*, or any *specific legacy or sum*, and devises the estate so charged to *trustees* for the whole of his estate or interest, and makes no express provision for raising the debts, legacy, or sum, the *devisees in trust* may sell or mortgage; and by s. 15, the power is continued to all persons taking the estate so charged by survivorship, descent, or devise; and by s. 17, purchasers and mortgagees are not bound to inquire whether such powers "have been duly and correctly exercised by the person or persons acting in virtue thereof." Where *debts* are charged, of course a purchaser or mortgagee under these powers is not bound to see to the application of his money, and where a *specific legacy or sum* is charged, if the above enactments do not *per se* confer a power of signing receipts, the purchaser or mortgagee is exempted from seeing to the application by the 23d section of the same Act (*a*).

The 18th section declares that the Act shall "not extend to a devise to any person or persons in fee or in tail, or for the testator's whole estate and interest, charged with debts or legacies, nor shall it affect the power of any such devisee or devisees to sell or mortgage *as he or they may by law now do*." To make this section consistent with the 14th, the "devise" referred to in the 18th section must mean a *beneficial devise*, and "devisee or devisees" a *beneficial devisee or devisees*, and the inference would seem to be that, in the view of the framer of the Act, no legislative assistance was needed in the case of a beneficial devise subject to a charge. Indeed the concluding words of the section seem almost tantamount to a declaration of the legislature that beneficial devisees sub-

(*b*) The recent case of *Hodkinson v. Quinn*, 1 J. & H. 303, when closely considered, will be found to afford little aid towards solving this ques-

tion; and see *Cook v. Dawson*, 29 Beav. 126; 3 De G. F. & J. 127.

[(*a*) See also 44 & 45 Vict. c. 41, s. 30.]